



CHAPTER clxiii.

An Act to provide for the transfer of the undertaking of the Porthcawl and District Gas Company to the urban district council of Porthcawl to confer further powers on the Council with respect to the supply of gas and water to empower the Council to maintain the harbour at Porthcawl and to make further and better provision for the improvement health and local government of the district and for other purposes.

A.D. 1914

[7th August 1914.]

WHEREAS the district of Porthcawl in the county of Glamorgan is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the urban district council of Porthcawl which district and Council are in this Act respectively called "the district" and "the Council":

And whereas by the Porthcawl and District Gas Act 1913 (in this Act referred to as "the Act of 1913") the Porthcawl and District Gas Company (in this Act referred to as "the company") were incorporated and the undertaking of the Porthcawl Gas Light and Coke Company Limited was vested in the company and the said limited company was from and after the passing of that Act dissolved:

3 & 4 Geo. V.
c. xiv.

And whereas by the Act of 1913 the limits within which the company are authorised to supply gas are defined as being the district and the parishes and places of Sker Kenfig Pyle Tythegston Higher and Tythegston Lower all in the county of Glamorgan:

And whereas provisions are contained in the Act of 1913 with respect to the purchase by the Council of the undertaking

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A.D. 1914. of the company and it was provided among other things that
— if the Council should introduce a Bill into Parliament and bonâ
fide promote the same in the then next session for an Act to
empower them to purchase the undertaking of the company
the company should not oppose such Bill except in so far as
they might deem necessary in order to secure the insertion
therein of provisions to protect their interests with respect to
such purchase :

And whereas it is expedient that the undertaking of the
company should be transferred to and vested in the Council in
manner provided by this Act and that powers should be conferred
upon the Council as herein-after provided :

And whereas it is expedient that the Council be authorised
to borrow money for the purchase of such undertaking and for
the other purposes of this Act :

46 & 47 Vict.
c. lii.

And whereas by the Great Western and Llynvi and Ogmores
Railway Companies Amalgamation Act 1883 the undertaking of
the Llynvi and Ogmores Railway Company (including therein the
harbour and pier at Porthcawl with a breakwater dock wharves
quays and other conveniences authorised constructed and main-
tained by and under the Llynvi Valley Railway Act 1855 and the
Llynvi and Ogmores Railways Act 1864) was amalgamated with
the undertaking of the Great Western Railway Company :

18 Vict. c. l.
27 & 28 Vict.
c. xlviii.

And whereas by an agreement dated the twenty-ninth day
of April one thousand nine hundred and thirteen made between
the Great Western Railway Company of the one part and the
Council of the other part and scheduled to and confirmed by
section 73 (Confirmation of agreement with Porthcawl Council)

3 & 4 Geo. V.
c. lvi.

of the Great Western Railway Act 1913 it was agreed inter alia
that the said company should convey to the Council a portion (in
this Act referred to as "the harbour works") of the harbour
docks works lighthouse lands and buildings of the said company
at Porthcawl and that as between the said company and the
Council the Council should be at liberty to maintain the harbour
works :

And whereas by section 74 (Abandonment of Porthcawl
Docks) of the Great Western Railway Act 1913 the Great
Western Railway Company were empowered to abandon so much
of the dock and harbour works belonging to them and situate
in the district as was not to be conveyed to the Council in
accordance with the said agreement and to use and appropriate

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the site thereof and the lands and premises adjoining the same so far as the same were not to be conveyed to the Council as aforesaid for other purposes of their undertaking or to sell lease or otherwise dispose of any part or parts of such site lands and premises : A.D. 1914.
—

And whereas in pursuance of the said agreement the Great Western Railway Company have conveyed the harbour works to the Council and it is expedient that the Council should be empowered to maintain improve and regulate the harbour of Porthcawl and that the other powers in relation thereto in this Act contained should be conferred upon the Council :

And whereas the Council have under the powers of the Public Health Acts provided a water supply for the district and it is expedient that further powers be conferred upon them with respect to their water undertaking :

And whereas it is expedient to make further provision in regard to streets and buildings in the district and that the powers of the Council in relation to the health local government and improvement of the district be enlarged as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the consent of the Local Government Board has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Porthcawl Urban District Council Act 1914. Short title.

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Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Purchase of Undertaking of Gas Company.
- Part III.—Supply of Gas.
- Part IV.—Water.
- Part V.—Harbour Undertaking.
- Part VI.—Seashore and Pleasure Grounds.
- Part VII.—Streets Buildings Sewers and Drains.
- Part VIII.—Infectious Disease and Sanitary Provisions.
- Part IX.—Financial.
- Part X.—Miscellaneous.

Incorporation of
general Acts.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—

- (A) The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845:
- (B) The Gasworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers) provided that section 13 of that Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Council shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section:
- (C) The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof):
- (D) The Harbours Docks and Piers Clauses Act 1847 except sections 16 to 19 (unless the Council shall be required by the Board of Trade to provide and maintain a lifeboat and a tide and weather gauge) Provided that the following expressions used in the said Act of 1847 shall have the following respective meanings (that is to say):—

The expressions “packet boat” and “post office packet” mean respectively a vessel employed by

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or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression "Post Office bag of letters" means a mail bag as defined by the same Act; A.D. 1914.

Provided also that nothing in the said Act of 1847 or in this Act shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

"The district" means the urban district of Porthcawl in the county of Glamorgan;

"The Council" means the urban district council of the district;

"The company" means the Porthcawl and District Gas Company;

"The Act of 1913" means the Porthcawl and District Gas Act 1913;

"The undertaking of the company" includes all the gasworks engines mains pipes and machinery lands and buildings plant fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the company at the date of the transfer of the undertaking of the company to the Council except cash in hand or with their bankers book debts received or due on credit or revenue account and except any profits then to be divided and except the books and papers relating exclusively to the shareholders in and the constitution of the company and also except movable stock-in-trade gas coal and other stores which shall be taken over by valuation at the date of the transfer;

"The gas undertaking" means the gas undertaking of the Council under this Act;

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“The harbour works” means and includes so much of the harbour docks works lighthouse lands and buildings of the Great Western Railway Company at Porthcawl as has been conveyed by the said company to the Council in pursuance of the recited agreement of the twenty-ninth day of April one thousand nine hundred and thirteen ;

“The harbour” means and includes the harbour works for the time being and any improvement amendment enlargement or extension thereof and the area below high-water mark described in subsection (1) of the section of this Act of which the marginal note is “Limits of harbour” ;

“The harbour limits” means the limits described in the section of this Act of which the marginal note is “Limits of harbour” ;

“The harbour undertaking” means and includes the harbour and the harbour undertaking of the Council as the same from time to time and at any time exist ;

“The harbour revenue” means all rates tolls dues rents and other sums received by the Council from and in respect of the harbour undertaking ;

The expression “prescribed limits” in the Harbours Docks and Piers Clauses Act 1847 incorporated with this Act shall mean and include the limits of the harbour undertaking ;

“The clerk” “the medical officer” and “the surveyor” mean respectively the clerk the medical officer of health and the surveyor of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district ;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district ;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction ;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

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“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council.

PART II.

PURCHASE OF UNDERTAKING OF GAS COMPANY.

5.—(1) Within three months after the passing of this Act the Council shall give to the company notice in writing of their intention to purchase the undertaking of the company and thereupon the company shall sell and transfer and the Council shall purchase and acquire the undertaking of the company discharged from their then existing debentures and mortgages (if any) or other financial obligations and liabilities for such price or consideration being a sum in gross and on such terms and conditions

Transfer of
undertaking
of company
to Council.

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A.D. 1914. as may be agreed upon between the company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the Council and the expression "lands" shall mean the undertaking of the company. Provided that any arbitrators or umpire (as the case may be) shall not in settling the amount to be paid by the Council to the company have regard to the fact that the company had obtained the Act of 1913.

(2) In addition to the sum to be paid by the Council to the company under the foregoing provisions of this section the Council shall also pay to the company the actual costs charges and expenses incurred by the company of obtaining the Act of 1913.

(3) The Council shall purchase and take over all movable stock-in-trade gas coal and other stores belonging to the company at the transfer at such price failing agreement as may be settled by a valuer to be agreed upon between the parties or failing agreement to be nominated by the President of the Institution of Civil Engineers upon the application of either party.

(4) The Council shall pay the purchase money to the company on such day as may be agreed between the company and the Council or failing agreement on the twenty-fifth day of March or the twenty-fourth day of June or the twenty-ninth day of September or the twenty-fourth day of December which shall first happen after the expiration of three months from the determination by agreement in writing or by the award of the arbitrators or umpire of the amount of the purchase money and on such payment the undertaking of the company shall by virtue of this Act become and shall thenceforth be transferred to and vested in and belong to and be exerciseable by the Council and such transfer and vesting are in this Act referred to as "the transfer."

Receipt for
purchase of
money.

6. The receipt in writing of three directors of the company for money paid to the company by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof

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Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the company. A.D. 1914.

7. If at the date of the transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the company the same shall not abate or be discontinued or in any wise prejudicially affected by reason of the transfer or of anything in this Act but the same (if against or in favour of the company) may be continued prosecuted and enforced against or in favour of the Council as and when it might have been continued prosecuted and enforced against or in favour of the company if this Act had not been passed but not further or otherwise. Pending actions.

8. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the company and in force at the time of the transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the company the Council had been a party thereto. Contracts of company to be binding on Council.

9.—(1) From and after the transfer the company shall subsist only for the purpose of paying their debts and liabilities and of receiving and recovering the sums payable to them as provided by this Act and distributing the same and the purchase money and other moneys payable to the company in accordance with the provisions of this Act and for realising the remainder of the property and assets of the company and for winding up the affairs of the company and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office at the date of the transfer and the survivors or survivor of them shall continue in office without re-election and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section. Winding up of company.

If the number of directors of the company be reduced by death resignation or otherwise below three before the completion

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A.D. 1914. of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the company to fill the vacancy or vacancies so caused.

(2) Forthwith after the transfer the directors of the company shall proceed to wind up the affairs of the company and after payment of the debts and liabilities of the company shall pay and distribute their net moneys rateably to and among the several persons who at the transfer were the registered holders of shares in the capital of the company or their respective executors administrators and assigns according to the holding of each such shareholder and in payment of such bonus or bonuses (if any) as the company decide to grant to any directors officers and servants of the company and for the purpose of such distribution the several persons whose names shall appear in the books of the company at the transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders of the company and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the shares or interest in respect whereof the money is paid.

(3) When the directors of the company are for six months after the transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Glamorgan holden at Bridgend under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the company and the directors thereof from all further liability with respect to the money so paid.

(4) The company shall subject to the provisions of this Act be wound up under and in accordance with the provisions of and in the same manner and with the same incidents as if the company were a company registered under the Companies (Consolidation) Act 1908 and had on the transfer duly passed a special resolution requiring the company to be wound up voluntarily and for the purposes of such winding up the company shall

from and after the passing of this Act be deemed to be registered in England under the said Act and for the purpose of calling and holding meetings and passing resolutions and other matters incident to such winding up resolutions of meetings of the company convened and held in pursuance of and in accordance with the provisions contained in the Act of 1913 may and shall take effect as resolutions of a company duly registered.

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(5) After the transfer and until the company shall be finally wound up and dissolved the company shall be entitled to retain the directors' minute books the register of shareholders and other books relating solely to the holders of shares in and to the constitution of the company and shall have access at all reasonable times to the other books documents and accounts relating to the transferred undertaking for the purpose of making up the accounts of the company to the date of the transfer and for all other reasonable purposes in relation to the winding up of the company and upon the winding up of the company the said books retained by them (other than the directors' minute books and such of the books of the company as relate exclusively to the shareholders in and the members and constitution of the company) shall be handed over to the Council.

(6) Upon the purposes specified in this section being fulfilled the company shall ipso facto be dissolved.

10. The company shall pay and discharge all outgoings and liabilities of every kind properly chargeable to revenue up to the transfer and shall be entitled to all rents profits and other receipts on revenue account from the undertaking up to the transfer and when necessary for the purpose of giving effect to this enactment such outgoings rents profits and receipts shall be apportioned between the company and the Council and any such rents profits or sums of money attributable to the period prior to the transfer but not due or payable at the time of the transfer may when due be recovered by the Council who shall pay to the company the proportion of such rents profits and sums of money due to them up to the time of the transfer.

Company to
pay out-
goings and to
be entitled to
rents &c.

11. All books and documents in the possession of the company which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same or the like matter for or against the Council.

Books &c.
to remain
evident e.

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Maintenance
of under-
taking by
company till
transfer.

12. Until the transfer the undertaking of the company shall be maintained and carried on by the company as heretofore in the ordinary course of business but the company shall not without the previous consent of the Council under the hand of their clerk enter into any new contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking.

Repeal of
Act of 1913
with ex-
ception of
certain pro-
visions.

13. Subject to the provisions of this Act as from the transfer the Act of 1913 with the exception of the sections of that Act and the schedule thereto which are referred to in the First Schedule to this Act shall be and the same is hereby repealed and the said sections of the Act of 1913 shall apply to the gas undertaking and to the Council in respect thereof as if the same were re-enacted in this Act and shall have effect as if the expression "the Council" were substituted for the expression "the company" wherever the last-mentioned expression occurs in those sections.

PART III.

SUPPLY OF GAS.

Gas limits.

14. The limits of the Council for the supply of gas shall be and include the urban district of Porthcawl and the parishes and places of Sker Kenfig Pyle Tythegston Higher and Tythegston Lower in the rural district of Penybont all in the county of Glamorgan.

Provision for
sale of plant
outside
district.

15. If at any time after the passing of this Act any local authority whose district is beyond the district of the Council but as to the whole or any part thereof within their limits for the supply of gas shall give not less than six months' notice in writing to the Council of their desire to purchase such portion of the gasworks and plant of the Council as is contained within the district of any such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the gasworks and plant of the Council (except the mains and pipes or other apparatus which shall be necessary for supplying with gas any other part of the limits of the Council for the supply of gas) and to supply gas within such district then it shall not be lawful for the Council to oppose such application (except as to the details thereof) and

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if such powers of purchase and supply be granted the Council shall sell and such local authority shall purchase the portion of the gasworks and plant of the Council (except as aforesaid) within the district of such local authority at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts Any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as may be otherwise provided for by Parliament The Council shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from sales of land under this Act Provided that after the completion of such purchase all obligations on the part of the Council to supply gas within the district of the purchasing authority shall cease and determine.

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16. The Council may for the purposes of the gas undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the lands described in the schedule to the Act of 1913 any lands and hereditaments not exceeding in the whole five acres which the Council may require for the purposes of the gas undertaking but the Council shall not create or permit a nuisance on any such lands and no lands shall be used by the Council for the purpose of manufacturing gas or residual products except the lands described in the said schedule.

Power to purchase lands by agreement.

17. The price to be charged by the Council for gas supplied by them to persons who shall burn the same by meter shall not at any time

Limiting price of gas.

(A) within the district exceed four shillings ; and

(B) beyond the district exceed by more than sixpence the price for the time being charged by the Council in the district

for every thousand cubic feet and so in proportion for every smaller quantity.

18. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing-place shall be a testing-place which shall be provided by the Council within six months from the transfer at some convenient part or parts of the gasworks of the Council or at the offices of the Council.

Testing-place.

19. Within six months from the transfer the Council shall provide at the prescribed testing-place apparatus for testing the

Council to provide apparatus

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A.D. 1914. calorific value of the gas supplied by them at such testing-place similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing the calorific value of the gas supplied by the companies referred to in the London Gas Act 1905.

Provisions as to testing for calorific value.

20. The following provisions shall apply with respect to the testing for calorific value of the gas supplied by the Council :—

- (1) Not more than one testing for calorific value shall be made on any one day (reckoned from midnight to midnight) except that in the event of the calorific value being on any testing ascertained to be below four hundred and seventy-five British thermal units the gas examiner shall forthwith give notice thereof to the Council and a second testing shall be made at an interval of not less than one hour from the time of making the first testing at that testing-place and the average of the two testings shall be deemed to be the calorific value of the gas on that day :
- (2) The Council may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer who shall not interfere in the testing :
- (3) The gas examiner shall forthwith give notice to the Council at their office of any defect of calorific value ascertained by him on any testing of the gas :
- (4) Section 12 of the Gasworks Clauses Act 1871 and so much of Schedule A of that Act as relates to the apparatus and mode of testing illuminating power shall not apply to the Council and their gas undertaking and sections 28 to 33 both inclusive of the said Act in their application to the Council and their gas undertaking shall be construed as if calorific value were therein referred to instead of illuminating power.

Penalties for deficient calorific value.

21. Where the calorific value on any day of the gas supplied by the Council is less than four hundred and seventy-five British thermal units the Council shall be liable to the following penalties in respect of such deficiency (that is to say) :—

Where the deficiency does not exceed fourteen British thermal units two pounds;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds ;

For each complete twenty-eight British thermal units of defective value a sum not exceeding ten pounds :

Provided that the Council shall not be liable for more than one penalty in respect of a deficiency of calorific value of the gas supplied on any one day.

22. The Council may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act.

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Power to lay pipes in streets not dedicated to public use.

23. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Council a supply or the continuance of a supply of gas for premises having a separate supply either of gas or electricity (that is to say a supply from an installation other than that of the Council) unless he shall have previously agreed to pay to the Council such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Supply of gas where consumer has separate supply.

24. The Council may erect fit up maintain and let upon the lands for the time being belonging to or leased by them for the purpose of the gas undertaking dwelling-houses for persons employed by them for the purposes of that undertaking.

Dwelling-houses for Council's employees.

25. If any difference arise between the Council and any road authority or railway canal or other company whose lands or works the Council have power to cross under the authority of this or the last preceding part of this Act as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences with road authorities or railway or other companies.

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PART IV.

WATER.

Supply of
water by
hose pipe
to stables.

26. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Council may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

Council not
bound to sup-
ply several
houses by
one pipe.

27. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of
discontinu-
ance.

28. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council.

Byelaws for
preventing
waste &c. of
water.

29.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Council do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such

person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable. A.D. 1914. —

30.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus. Detection of waste.

(2) Provided that the Council shall not interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

31.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same. Power to supply water fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof:

Provided as follows:

(A) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing

[Ch. clxiii.] *Porthcawl Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914.
—

repairing or removal thereof as to meet any expenditure by them under the powers of this section in connexion therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(B) Every sum charged by the Council in respect of provision of such fittings or the repairing fixing or removal thereof shall be clearly stated in every demand note delivered by the Council to the consumer:

(c) The total sums expended and received by the Council in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking of the Council for such year.

Power to
sell meters.

32. The Council may sell to any person supplied or about to be supplied by them with water meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

As to communication
pipes.

33.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the district execute such works on behalf of such owner or occupier and any expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Notice to
Council of
connecting
or disconnecting
meters.

34. Before any person connects or disconnects any meter by means of which any water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so

and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. A.D. 1914.

35. If it should appear to the Council that by reason of any injury to or defect in any communication pipe which is situate in a highway and which the Council are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Council to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Council in executing such repairs shall be recoverable by the Council from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. Power to Council to repair communication pipes.

36. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the surveyor or other officer duly authorised in that behalf by the Council. Maintenance of common pipe.

37. The provisions of this Act shall apply to the existing water undertaking of the Council which shall continue to be carried on by them under the powers of the Public Health Acts relating to water supply. Water undertaking to be carried on under Public Health Acts.

PART V.

HARBOUR UNDERTAKING.

38.—(1) The Council may as from the date of the passing of this Act carry on manage maintain regulate and control the harbour undertaking in accordance with and subject to the provisions of this Act and the Harbours Docks and Piers Clauses Act 1847 as incorporated with this Act and for the purposes of Power to carry on harbour undertaking.

[Ch. clxiii.] *Porthcawl Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. the said Act so incorporated the Council shall be deemed to be the undertakers in respect of the harbour.

(2) All expenses incurred by the Council prior to the passing of this Act in connexion with the harbour works shall be deemed to be costs and expenses of the Council of and in connexion with the carrying into execution of the provisions of this Part of this Act.

Limits of
harbour.

39.—(1) The limits within which the Council shall have authority and within which the powers of the harbour-master and the power to levy rates may be exercised (in this Act referred to as “the harbour limits”) shall comprise the harbour works and the area below high-water mark inclosed by (A) an imaginary straight line drawn from the coastguard station in a southerly direction for a distance of four hundred and sixty-six yards or thereabouts (B) an imaginary straight line drawn from the termination of the imaginary line first described in an easterly direction for a distance of five hundred and sixteen yards or thereabouts and (C) an imaginary straight line drawn from the termination of the imaginary line last described in a northerly direction for a distance of about one thousand yards to the Ordnance bench mark on the coast at the southernmost end of Mackworth Road.

(2) A map or plan showing the limits of the harbour having been signed in triplicate by Ernest Gardner esquire the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and one copy thereof having been deposited at the office of the Board of Trade another copy thereof shall be deposited at the office of the clerk of the peace for the county of Glamorgan and another copy thereof shall be deposited at the office of the Council.

(3) In case of any discrepancy between the limits delineated on the said map or plan and the limits described in subsection (1) of this section the said map or plan shall be deemed to be correct and shall prevail.

Power to
maintain and
improve har-
bour.

40.—(1) Subject to the provisions of this Act the Council may with the consent of the Board of Trade maintain alter improve and extend the harbour works and may in connexion with the harbour and harbour works construct erect maintain alter and improve any warehouses offices sheds cranes embankments excavations landing-places piers quays jetties wharves

beaches for hauling boats patent slips buoys moorings lights
 beacons roads sewers drains watercourses tanks gas and water
 pipes electric mains lighting apparatus and other works and con-
 veniences which may be found necessary or convenient for the
 accommodation of vessels and traffic and may also from time
 to time lay down and maintain rails tramways sidings and
 turntables on and along the harbour works and land connected
 therewith and may take down or remove portions of the existing
 harbour works.

A.D. 1914.

(2) A line of rails or tramway constructed under the powers
 of this section shall not be used for the public conveyance of
 passengers unless and until it has been inspected and certified
 by the Board of Trade to be fit for that use.

(3) Any mains pipes wires or other apparatus constructed
 erected or maintained under this section shall be so constructed
 erected used and worked as to prevent any interference with
 telegraphic communication by means of any telegraphic line (as
 defined by the Telegraph Act 1878) belonging to or used by the
 Postmaster-General.

41.—(1) The Council may from time to time dredge scour
 deepen alter cleanse and improve the harbour and the approaches
 thereto and the bed and foreshore thereof.

Power to
 dredge.

(2) All sand mud gravel and other materials dredged up or
 removed shall be the property of the Council and they may sell
 or otherwise dispose of the same as they think fit Provided that
 no sand mud gravel or other materials shall be laid down or
 deposited in any place below high-water mark without the consent
 in writing of the Board of Trade having been first obtained.

(3) All money arising from any sale or other disposition of
 sand mud gravel and other materials under this section after
 payment of the expenses connected therewith shall form part
 of the harbour revenue.

42. The Council may provide purchase take on lease hire and
 use such steam or other dredgers eroders engines tugs lighters
 and other vessels diving-bells ballast-lighters rubbish-lighters
 tools plant or other materials and machinery as they may think
 necessary for effecting the purposes of this Part of this Act and
 may let the same on hire for such sums and upon and subject
 to such terms and conditions as they may think fit or may sell
 or dispose of the same and the money realised from such sale or

Power to
 purchase or
 hire dredgers
 &c.

[Ch. clxiii.] *Porthcawl Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. disposal shall be applied towards carrying into effect any purposes of this Part of this Act to which capital is properly applicable.

Running
powers to
Great West-
ern Railway
Company
over sidings
at harbour.

43. The Great Western Railway Company may free of all tolls or charges pass over and use with their engines carriages and waggon and for traffic of every description and with their officers and servants any lines of rails now existing or hereafter constructed or laid down by the Council under the provisions of this Act on and along the harbour works and land connected therewith Provided that nothing in this section contained shall prevent the Council from removing any lines of rails for the time being belonging to them or impose any liability on the Council to maintain any such lines of rails.

Power to
levy tolls.

44. From and after the passing of this Act the Council may within the harbour limits subject to and in accordance with the provisions of this Part of this Act demand receive and recover for the use of the harbour and the harbour works and in respect of vessels boats persons goods animals fish articles and things and for the services described in the Second Schedule to this Act any sums not exceeding the several rates in the said schedule specified.

Power to
vary exemp-
tions and
compound
for rates.

45. The Council may confer vary or extinguish exemptions from and compound with any company body or person with respect to the payment of rates or charges authorised by this Act but so that no preference be in any case given to any company body or person over any other company body or person using the harbour under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Act.

Certain fish-
ing vessels
under stress
of weather
exempt from
rates.

46. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coasts of the United Kingdom shall when forced by stress of weather to make use of the harbour and not breaking bulk while making use thereof be exempt from rates leviable under this Act.

Lifeboat
crew exempt
from tolls.

47. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for

[4 & 5 GEO. 5.] *Porthcawl Urban District Council* [Ch. clxiii.]
Act, 1914.

saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the harbour without payment. A.D. 1914.

48.—(1) The rates to be received by the Council shall be adjusted by them in such a manner that as far as possible the income of the harbour shall be sufficient and not more than sufficient for the purposes of the harbour. Board of Trade may reduce rates.

(2) If at any time it appears to the Board of Trade from the annual account to be sent to them under this Act that the clear annual income derived from the rates leviable by the Council on the average of the then three last preceding years after payment of all expenses and outgoings exceeds the amount sufficient for the purposes of this Act the Board may if in their discretion they think fit reduce the rates leviable under this Act to such amounts as will be sufficient to provide the amount aforesaid and may again at any time raise the rates to any amount not exceeding the rates specified in the Second Schedule to this Act.

49. So much of the Llynvi Valley Railway Act 1855 and the Llynvi and Ogmore Railways Act 1864 as relates to the harbour is hereby repealed. Repeal of Acts relating to harbour.

50. The Council may appoint and pay officers and servants for the purpose of assisting the Council in carrying out the powers conferred upon them by this Part of this Act. Power to Council to appoint officers &c.

51. In addition to the powers of making byelaws contained in any other enactment enabling the Council to make byelaws they may from time to time subject to the provisions of this Act make such byelaws as they think fit for all or any of the following purposes (that is to say):— Power to make byelaws with respect to harbour.

For regulating the use of and the moving of carriages waggons and trucks along the harbour and harbour works and lands connected therewith;

For regulating the conduct of the owners masters and crews of vessels and for requiring such vessels to keep the advertised times of sailing and for regulating the taking on board transhipping landing or putting out of passengers;

For regulating the using of the buoys of the Council;

[Ch. clxiii.] *Portsmouth Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914.

For preventing nuisance or annoyance by smoke and noise caused by vessels and the machinery and appliances thereof;

For regulating the use of warehouses sheds depôts quays trucks barges machinery plant and appliances and labour provided by the Council;

For berthing and removing vessels lying in any part of the harbour and regulating the conduct and behaviour of boatmen lumpers jobbers stevedores and others resorting to the harbour or harbour works or lands connected therewith;

For regulating the ballasting of vessels within the harbour and the order and manner in which they shall be supplied with ballast and the discharging and removal or disposal of ballast;

For preventing the exhibiting or placing in or on the harbour or harbour works or lands connected therewith of any goods for sale other than such goods as the Council from time to time think fit to be permitted to be sold there and other than perishable articles landed in the harbour or on the harbour works or lands connected therewith and sold within forty-eight hours of their being landed:

And such byelaws (except so far as they relate solely to the Council or their officers or servants) shall be subject to the provisions with respect to byelaws of the Harbours Docks and Piers Clauses Act 1847 except section 85 of that Act but no such byelaws shall have any force or effect unless and until the same be confirmed by the Board of Trade.

Any person who offends against any byelaw shall be liable for every offence to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings for every day such offence shall continue after conviction therefor and such penalties shall be in addition to any damages which may be recoverable by the Council or by any other person or company for any loss or injury to them or him or to their or his property consequent on such offence.

Power to
lease harbour
undertaking
or rates.

52.—(1) The Council may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be sanctioned by the Board of Trade

[4 & 5 GEO. 5.] *Porthcawl Urban District Council* [Ch. clxiii.]
Act, 1914.

lease to any company corporation or person (A) the entire harbour undertaking or (B) the rates and other charges authorised to be taken by this Part of this Act. A.D. 1914.

(2) As from the date of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Council by this Part of this Act which the Council have or might exercise under this Part of this Act (except the powers contained in the section of this Act of which the marginal note is "Expenses of carrying out this Part of Act") and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Part of this Act except as aforesaid.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Board of Trade.

(4) The Council shall within one month after the date of any lease made under this section deposit a certified copy thereof with the Board of Trade and shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this subsection.

(5) No lease made under this section shall be made in consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Council from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Harbours Docks and Piers Clauses Act 1847 as incorporated with this Act and of this Act as to the keeping and delivery of accounts shall apply to and be binding upon as well the lessee as the Council and all moneys received by the Council under or in respect of any such lease shall be deemed to be part of the harbour revenue.

53. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved Works below high-water mark to be subject to approval of Board of Trade.

[Ch. clxiii.] *Porthcawl Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade Any alteration or extension of any such works shall be subject to the like approval If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

Harbour
works to be
in parish of
Newton
Nottage.

54. The harbour works and the works authorised by this Part of this Act shall be deemed to be for all purposes within the parish of Newton Nottage and the urban district of Porthcawl in the county of Glamorgan.

Expenses of
carrying out
this Part of
Act.

55. All costs and expenses of the Council of and in connexion with the carrying into execution of the provisions of this Part of this Act (save and except such as are paid out of borrowed moneys) shall be paid out of the harbour revenue and in the event of the harbour revenue being insufficient for the purpose of meeting such expenses the deficiency may be made good out of the district fund and general district rate and any sum so paid out of the district fund or general district rate shall be a debt due from the harbour undertaking to the district fund and shall be repaid to that fund out of the harbour revenue as by this Act provided.

PART VI.

SEASHORE AND PLEASURE GROUNDS.

Council may
provide win-
ter gardens
bandstands
&c.

56.—(1) The Council may in any pleasure grounds or in any other park or garden for the time being belonging to or held by them or upon land acquired or to be acquired by them for the purpose erect provide maintain furnish and equip and may remove any winter gardens pavilions bandstands refuges refreshment assembly or reading rooms baths and other buildings and may charge for admission to such buildings or any of them or for the use thereof or of any part or parts thereof respectively.

(2) No power given by this section shall be exercised in such a manner as to contravene any covenant or condition subject to which any pleasure ground park or garden is owned or has been purchased without the consent of the person entitled in law to the benefit of such covenant or condition.

57.—(1) The Council may in or at any winter gardens pavilions bandstands assembly rooms reading rooms baths or other buildings for the time being belonging to them or under their control or upon any portion of the seashore or cliffs belonging to or leased by them (but subject to such lease) or in any recreation ground or upon land acquired by them for the purpose provide and carry on or arrange for the provision or carrying on of suitable concerts entertainments exhibitions and amusements or may let any of the aforesaid buildings other than baths for the purpose of such concerts entertainments exhibitions or amusements upon such terms and conditions as they may think fit or may let the same for particular concerts entertainments or exhibitions or for meetings.

A.D. 1914:
Power to let
pavilions or
provide en-
tertainments
therein.

(2) The Council may in any winter garden or recreation ground vested in them inclose an area for the purpose of any such concert or other entertainment and may make such charges as they think fit for admission to any such inclosure and for admission to any such winter gardens pavilions assembly rooms reading rooms baths or other buildings in connexion with any concert entertainment exhibition amusement or meeting and may make regulations for securing good and orderly conduct during any such concert entertainment exhibition amusement or meeting.

(3) The Council may provide and sell or authorise any person or persons to provide and sell programmes of any concert entertainment exhibition amusement or meeting which may from time to time be provided by the Council or with their sanction in any such place building or inclosure as aforesaid.

(4) Provided always that the net amount of any payments or contributions made by the Council for the purposes of this section after deducting any moneys received by them in pursuance of this section shall not in respect of any one year exceed a sum equal to a rate of one halfpenny in the pound on the rateable value for the time being of the district for the purposes of the general district rate together with the profits (if any) received by the Council in such year from the letting of chairs under this Act or under section 76 of the Public Health Acts Amendment Act 1907.

58. The Council may place or authorise any person or persons to place seats or chairs in any street or place or on any part of the seashore or the lands adjacent thereto now or hereafter

Seats and
chairs may
be provided.

[Ch. clxiii.] *Porthcawl Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. belonging to or leased to them for the use of the public and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of the seats and chairs and for preventing injury or damage thereto Provided that no byelaws affecting the foreshore below high-water mark shall come into operation until the consent of the Board of Trade has been obtained.

Application of receipts under this Part of Act.

59. All moneys received by the Council under this Part of this Act shall be carried to the credit of the district fund.

PART VII.

STREETS BUILDINGS SEWERS AND DRAINS.

Council may define future line of streets.

60.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road The line which in any case the Council propose so to prescribe and define shall be distinctly marked and shown on a plan to be signed by the chairman of the Council or by the clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain and in cases where such name and address cannot be ascertained by affixing such notice to or on the premises No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Council may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Council sell the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and the same when purchased shall vest in the Council as part of the street or road and the amount of purchase money shall in

[4 & 5 GEO. 5.] *Porthcawl Urban District Council* [Ch. clxiii.]
Act, 1914.

case of difference be settled by arbitration under the Arbitration Act 1889. A.D. 1914.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

61. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street. Continuation of existing streets to be deemed new streets.

62.—(1) No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof. No building allowed until street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

63. When a road or lane within the district is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force within the district require such owner to widen such road or lane so as to give a width not less than one-half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land Further provisions as to new streets.

[Ch. clxiii.] *Porthcawl Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. Provided that if and when the land on the opposite side of such road or lane shall be in course of being built on the owner of such land shall complete the widening of such road or lane so as to comply in all respects with the byelaws of the Council.

Trees or
shrubs over-
hanging
streets and
footpaths.

64.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Council under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Council under this section.

Means of
escape from
buildings in
case of fire.

65.—(1) Every new building exceeding thirty-five feet in height used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein or resorting thereto as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1914.

66. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available. Provisions as to houses without water supply.

67.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the district shall if practicable provide to the reasonable satisfaction of the Council and until the completion of any such work or operation sufficient water or other closets and urinals for the use of workmen. Sanitary conveniences for workmen engaged on buildings.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

68.—(1) The Council may by resolution declare that any sewer for the time being belonging to or vested in them shall thenceforth be appropriated and used for sewage (in this section called a "sewage sewer") and they may also declare that any other sewer for the time being belonging to or vested in them shall thenceforth be appropriated and used for surface water (in this section called a "surface-water sewer"). Separate sewers for surface water and sewage may be required.

(2) Where under the provisions of any Acts for the time being in force in the district the Council have power to require any street to be sewered they may require the provision of separate sewage sewers and surface-water sewers and the provisions of those Acts shall apply to such sewers accordingly Provided that the provisions of this subsection shall not be exercised unless and until the Council shall have provided sewers adequate and proper for the purpose of receiving the sewage from such separate sewage sewers and shall have provided sewers or other outlets adequate and proper for the purpose of receiving the surface-water from such separate surface-water sewers.

(3) (A) Where in any street separate sewage sewers and surface-water sewers shall have been provided (whether before or

[Ch. clxiii.] *Porthcawl Urban District Council* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — after the passing of this Act) no sewage shall be allowed to pass from any premises into the surface-water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Council.

(B) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(c) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient effectually to drain such premises the provisions of this subsection shall not apply to such premises until the Council have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface-water drainage thereof and the Council may if they think fit make all such alterations.

(4) Notwithstanding anything contained in this section the Council shall not require the provision of separate sewage sewers unless or until the sewers which are to receive the sewage therefrom shall have been connected directly or indirectly with pumping apparatus and the provisions of subsection (3) of this section shall not apply as regards any sewage sewer unless or until that sewer shall have been connected directly or indirectly with pumping apparatus so that in either case the sewage will be pumped for the purpose of being disposed of.

Council may
order houses
to be drained
by a com-
bined drain.

69.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer. A.D. 1914.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them.

70. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner. Amendment of section 19 of Public Health Acts Amendment Act 1890.

71. The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction. Power to lay drains in private streets.

72. If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose. Council to make communication between drains and sewers.

73.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the surveyor twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so. Notice of intention to repair drains.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Council authorised in writing by him for the purpose of inspection.

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A.D. 1914. (3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Improper
construction
or repair of
watercloset
or drain.

74. If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Wilful
damage to
drains water-
closets &c.

75. If any person causes any drain watercloset earthcloset privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water-supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water-supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds. Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Watercourse
choked up to
be a nuisance
under Public
Health Act
1875.

76. Any river stream or watercourse or any part or parts thereof respectively within the district so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto shall be deemed to be a nuisance within the meaning of section 91 of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health.

77. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Part of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

A.D. 1914.
 Penalty on
 occupiers
 refusing
 execution
 of Act.

78. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connexion with their railway under any Act of Parliament.

Saving as
 to railway
 companies.

PART VIII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

79. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Compensa-
 tion to dairy-
 men.

80. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Compensa-
 tion to per-
 sons ceasing
 employment.

81.—(1) The occupier of any building in the district which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the

Information
 to be fur-
 nished to
 medical

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Act, 1914.

A.D. 1914. application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

officer in
case of infec-
tious disease.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

For regula-
ting manu-
facture and
sale of ice-
cream &c.

82.—(1) Any person being a manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity who within the district—

- (A) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or
- (B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or
- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person

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who shall fail to comply with this subsection shall be liable upon conviction to a penalty not exceeding forty shillings. A.D. 1914.

(4) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable upon conviction to a penalty not exceeding forty shillings.

83.—(1) The Council may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable galvanised iron or enamelled iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such bins shall be of such size and construction as may be approved by the Council. Regulation dustbins.

(2) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

(3) Provided that this section shall not apply to any ashpits or any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

84.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Public notice to be given of provisions of this Part of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

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A.D. 1914.

PART IX.

FINANCIAL.

Power to
borrow.

85.—(1) The Council may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say):—

- (A) For the purchase of the undertaking of the company and for paying any sums payable by the Council to the company under this Act and defraying the costs charges and expenses incident to such purchase (other than the costs of this Act) the sums requisite for those purposes:
- (B) For the extension and improvement of the gas undertaking of the Council any sum or sums not exceeding in the whole ten thousand pounds:
- (C) For working capital in respect of the gas undertaking any sum or sums not exceeding in the whole one thousand pounds:
- (D) For paying the costs charges and expenses of this Act and of opposing the Act of 1913 as herein-after provided the sum requisite for that purpose.

(2) The Council shall pay off all money borrowed by them under subsection (1) of this section within the respective periods (each of which is in this Act referred to as "the prescribed period") following (that is to say):—

As to money borrowed for the purposes (A) mentioned in this section within thirty-five years from the date or dates of borrowing the same:

As to money borrowed for the purposes (B) mentioned in this section within twenty-five years from the date or dates of borrowing the same:

As to money borrowed for the purpose (C) mentioned in this section within ten years from the date or dates of borrowing the same:

As to money borrowed for the purposes (D) mentioned in this section within five years from the passing of this Act.

(3) The Council may also with the consent of the Board of Trade borrow such further money as may be necessary for

the purpose of extending and improving the harbour and the approaches thereto and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of the harbour undertaking. A.D. 1914.

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board of Trade or the Local Government Board as the case may be.

(4) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge—

As regards moneys borrowed for the purposes (A) (B) and (C) herein-before mentioned the revenue of the gas undertaking and if they think fit as a collateral security the district fund and the general district rate;

As regards moneys borrowed for the purposes (D) herein-before mentioned the district fund and the general district rate;

As regards moneys borrowed with the consent of the Board of Trade or the Local Government Board such fund rate or revenue as that Board may prescribe.

The provisions of this section shall not limit the powers conferred on the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

86.—(1) For the purpose of providing temporarily during any financial year for their current expenses as a sanitary authority (whether under the provisions of public general or local Acts) or for the current expenses of their gas water or harbour undertakings respectively and after the commencement of such year it shall be lawful for the Council to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in each case an amount equal to one-fourth of the amount of the before-mentioned expenses for the immediately preceding financial year for any such purpose as aforesaid and any amount so borrowed shall form a charge upon the rates or revenue of the undertaking

As to temporary borrowing.

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A.D. 1914. --- in respect of which it is borrowed as the same may be specified in the resolution of the Council authorising such borrowing *pari passu* with any bond or mortgage affecting the same and it shall further be lawful for the Council to utilise for providing temporarily for any such expenses any sinking funds which they may have in hand crediting the said sinking funds with such fair rate of interest not being less than three pounds per centum per annum as they may resolve Provided that—

(A) Any sum so borrowed together with the interest thereon shall in the case of any sum borrowed on the credit of a rate be repaid out of such rate within the financial year during which the same was borrowed and in any other case shall be repaid out of the income on the credit of which the sum was borrowed within three months after the expiration of such financial year :

(B) The clerk shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Council have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and fifteen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the

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Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary. A.D. 1914.

87. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act and the sums borrowed for the purpose of constructing works for the supply of water and set forth in the Third Schedule to this Act shall not be reckoned. Section 234 of Public Health Act not to apply.

88. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions contained in the section of this Act of which the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act. Mode of raising money.

89. Any money borrowed or raised under the provisions of this Act shall be applied only to the purposes for which it is authorised to be borrowed or raised and (except in the case of money borrowed for working capital or for current expenses) to which capital is properly applicable. Provided that moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Council with the approval of the Local Government Board determine. Application of moneys borrowed.

90. The following sections of the Public Health Act 1875 (that is to say):— Provisions as to mortgages.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

Section 239 (Receiver may be appointed in certain cases);

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A.D. 1914. shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply to and in relation to all mortgages granted under the powers of this Act as if they were with necessary modifications re-enacted in this Act.

Protection of
lender from
inquiry.

91. Any person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act nor be bound to see to the application nor be answerable for any loss mis-application or non-application of the money lent or of any part thereof.

Mode of
payment off
of money
borrowed.

92. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing.

Sinking
fund.

93.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a "non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the

loan in respect of which the sinking fund is formed or in accordance with the provisions of the section of this Act of which the marginal note is "Power to use sinking fund instead of borrowing" be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments. A.D. 1914.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appear to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is

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A.D. 1914. — formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appear to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Power to
use one form
of mortgage
for all pur-
poses.

94.--(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be

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sealed with the common seal of the Council and may be made in the form contained in the Fourth Schedule to this Act or to the like effect. A.D. 1914.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest

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A.D. 1914. — therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Council not
to regard
trusts.

95. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

96.—(1) The Council shall have power—

A.D. 1914.

- (A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to
re-borrow.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) By instalments or annual payments; or
- (B) By means of a sinking fund; or
- (C) Out of moneys derived from the sale of land; or
- (D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

97.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a

Returns
to Local
Government
Board
respecting
sinking fund.

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A.D. 1914. — return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appear to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Rates may be amended to accord with new or supplementary valuation list.

98. The powers of section 221 (Rates may be amended) of the Public Health Act 1875 shall extend to enable the Council to amend any rate made by them in pursuance of such Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate.

99. When under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund for the payment off of money borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

A.D. 1914.
 Power to invest sinking funds in statutory securities.

100.—(1) The Council shall keep separate accounts of their receipts and expenditure on capital and revenue account for the purposes of the gas undertaking and the harbour undertaking.

Separate accounts of gas undertaking and harbour undertaking to be kept.

(2) The Council shall not later than the thirtieth day of June in every year send to the Board of Trade a copy of their accounts in respect of their harbour undertaking and shall be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

101. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

Audit of accounts.

102.—(1) The Council shall apply all moneys received by them on revenue account in respect of their gas undertaking in the order following (that is to say):—

Application of revenue and deficiency of receipts in respect of gas undertaking.

First—In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly—In payment of the interest on moneys borrowed for the purposes of the undertaking;

Thirdly—In providing the requisite appropriations or instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

Fourthly—In extending and improving (if the Council think fit) any works for the purposes of the undertaking;

Fifthly—In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to

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the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the gas undertaking of the Council shall be made good out of the general district rate within twelve months after the deficiency is ascertained.

Liabilities
of harbour
undertaking
and general
liabilities of
Council to
be separate.

103. The harbour undertaking and the harbour revenue shall not be liable in respect of any claim or demand against or any liability of the Council arising otherwise than in respect or by reason of the harbour undertaking and all liabilities incurred in respect of the harbour undertaking and all claims and demands against the Council arising in respect or by reason of the harbour undertaking shall be enforceable against the harbour undertaking and the harbour revenue only and no other revenues funds or property of the Council shall be liable in respect ~~thereof~~ Provided that nothing in this section shall prejudice or affect the rights or remedies of the holder of any mortgage comprising the district fund and general district rate made under the section of this Act of which the marginal note is "Power to borrow":

Provided also that any moneys paid out of the district fund or general district rate in respect of any such mortgage shall be a debt due from the harbour undertaking to the district fund and shall be repaid to that fund out of the harbour revenue as by this Act provided. A.D. 1914.

104.—(1) Subject to the provisions of this Act with reference to the application of the harbour revenue the Council may in any year if they think fit for the purpose of forming and maintaining a contingency fund not exceeding at any one time the sum of two thousand pounds to meet any deficiency of harbour revenue or any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the harbour undertaking set apart out of the harbour revenue such a sum as they may think fit. Contingency fund in respect of harbour undertaking.

(2) Every sum set apart under this section shall be invested in any statutory security the Council being at liberty to vary and transpose such investment and the interest thereon shall be accumulated until the fund reaches the total sum of two thousand pounds or is required for any of the purposes mentioned in this section and so soon as the fund reaches the total sum of two thousand pounds such interest shall be placed to the credit of the harbour revenue.

105. The harbour revenue shall be applied for the purposes and in the order following and not otherwise (that is to say):— Application of harbour revenue.

- (1) In paying the cost of the maintenance repair management and regulation of the harbour undertaking;
- (2) In paying year by year the interest on money borrowed on the security of the harbour revenue;
- (3) In repayment as by this Act provided of money borrowed on the security of the harbour revenue;
- (4) In repaying to the district fund any moneys due thereto from the harbour undertaking;
- (5) In the formation of the contingency fund mentioned in the section of this Act of which the marginal note is "Contingency fund in respect of harbour undertaking":

And any revenue then remaining over after providing for the purposes aforesaid shall be applied by the Council in the improvement of the harbour and the works and conveniences connected therewith.

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Expenses of
executing
Act.

106. Save as otherwise by this Act expressly provided all expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys) shall be paid out of the district fund or general district rate. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

PART X.

MISCELLANEOUS.

Power to
retain sell
&c. lands.

107. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of
sale of sur-
plus lands.

108. The proceeds of the sale of any lands or other property of the Council under the powers of this Act and the fines and premiums on any leases granted by the Council under this Act shall be distinguished as capital in the accounts of the Council and shall be applied in discharge of any moneys borrowed by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council but shall not be applied to the payments of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such sums shall not be re-borrowed.

109. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or of any committee of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

A.D. 1914.
 ———
 Evidence of
 appoint-
 ments autho-
 rity &c.

110. Whenever the Council or the surveyor or other duly authorised officer of the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing (not being undertakers under any Act or Order made under the Tramways Act 1870 the Light Railways Act 1896 or the Electric Lighting Acts 1882 to 1909) the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or other such officer as aforesaid or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

In executing
 works for
 owner
 Council only
 liable for
 negligence.

111. The Council may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of

Expenses
 may be
 declared
 private im-
 provement
 expenses.

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A.D. 1914. which they were incurred in accordance with the provisions of
— section 257 of the Public Health Act 1875.

Authenti-
cation and
service of
notices &c.

112.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

Confirmation
of byelaws.

113. The provisions of sections 182 to 186 (both inclusive) of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act except byelaws made under Part V. (Harbour Undertaking) of this Act.

Consent of
Council to be
in writing.

114. All consents given by the Council under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk.

As to breach
of conditions
of consent of
Council.

115. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms and conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to appeal.

116. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer of the Council under the provisions of this Act or by any conviction or order made by a court of summary jurisdiction under the provisions of this Act may if

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no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts. A.D. 1914.

117. Where under the provisions of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. Apportionment of expenses in case of joint owners.

118. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

119. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

120. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensation how to be determined.

121. Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act may be laid and made by an officer of the Council authorised in that behalf or by the clerk. Informations by whom to be laid.

122. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer of the Council and be by him carried to the credit of

Penalties to be paid over to treasurer.

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A.D. 1914. — the district fund or to such other fund as the Council shall direct.

Judges not disqualified.

123. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Application of certain sections of Public Health Act 1875.

124. The provisions of section 102 (Power of entry of local authority) section 103 (Penalty for disobedience of order) and section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of Parts VII. (Streets buildings sewers and drains) and VIII. (Infectious disease and sanitary provisions) of this Act as if those purposes had been mentioned in the said sections.

Saving for indictments &c.

125. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Inquiries by Local Government Board.

126.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Powers of Act cumulative.

127. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law

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or custom and the Council or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed
Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

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—

128. The Council shall forward to the Registrar of Joint Stock Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months from the passing of this Act the Council shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the copy is omitted to be forwarded and every penalty shall be recovered summarily There shall be paid to the registrar by the Council on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association.

Copy of
Act to be
registered.

129. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose which consent the said Commissioners and Board are hereby respectively authorised to give.

Crown
rights.

130. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 and also the costs charges and expenses incurred by the Council in opposing the Bill for the Act of 1913 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

Expenses of
Act.

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The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

PROVISIONS OF THE ACT OF 1913 EXCEPTED FROM REPEAL.

Section.	Marginal Note.
SUPPLY OF GAS WORKS &c.	
48	Powers as to construction and maintenance of gasworks &c. (and the schedule to the Act of 1913 therein referred to).
49	Period for compulsory purchase of lands.
51	Power to lay pipes &c. for purposes ancillary to business of Company.
53	Charge for gas supplied by means of prepayment meters.
56	Calorific value.
59	Pressure of gas.
60	Saving as to penalties.
61	As to construction and placing of pipes &c. between mains and meters.
62	Power to supply fittings &c. for heating and other purposes.
63	Consumers to give notice to Company before removing.
64	Period of error in defective meters.
65	Anti-fluctuators for gas engines.
66	Power to enter premises and remove fittings.
68	Power to take licences for use of patents.
69	Company may contract with local authority &c. for supply in bulk.
MISCELLANEOUS.	
72	Company to pay interest on money deposited as security for gas meters &c.
74	Power to refuse supply to persons in debt for other premises.
78	Notice to discontinue supply of gas.
80	Several sums in one summons.
83	For protection of Great Western Railway Company.

SECOND SCHEDULE.

A.D. 1914.

I.—RATES ON VESSELS ANCHORING OR MOORING IN THE
RATING LIMITS.

		s.	d.
For every vessel under 50 tons - - -	per registered ton	0	4
For every vessel of 50 tons and under 100 tons - - - - -	per registered ton	0	6
For every vessel of 100 tons and upwards	per registered ton	0	8
All lighters from any vessel inside the rating limits shall be exempted from rates but if the vessel do not enter the rating limits every lighter shall pay for each trip - - - - -			
	per registered ton	0	2

II.—RATES ON FISHING VESSELS ANCHORING OR MOORING
IN THE RATING LIMITS.

	s.	d.
For every sailing fishing boat including those fitted with auxiliary motor power - - - - - each time	0	3
Or in full of rates per annum payable in advance - - -	10	0
Fishing boats propelled by steam or other mechanical power except auxiliary motor power to be rated as vessels.		

III.—RATES FOR PASSENGERS.

	s.	d.
For every passenger or other person not being the master or a member of the crew who shall land at or embark from the harbour on board of any ship vessel packet launch passenger boat or landing boat for each and every time any sum not exceeding - - - - -	0	4

IV.—RATES ON PASSENGERS' LUGGAGE LANDED OR SHIPPED.

	s.	d.
For every trunk portmanteau box parcel or other package within the description of luggage and not borne by the passenger not exceeding 56 lbs. - - - - -	0	2
Over 56 lbs. and not exceeding 84 lbs. - - - - -	0	4
Over 84 lbs. and not exceeding 112 lbs. - - - - -	0	5
Over 112 lbs. and not exceeding 140 lbs. - - - - -	0	6
Over 140 lbs. and not exceeding 196 lbs. - - - - -	0	7
Over 196 lbs. and not exceeding 2 cwt. - - - - -	0	8
And for every 20 lbs. weight in addition - - - - -	0	1

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A.D. 1914. V.—RATES ON GOODS SHIPPED TRANSHIPPED OR UNSHIPED.

							s.	d.
Ale and beer	-	-	-	-	-	per 3 gallons	0	0½
„ „ (bottled)	-	-	-	-	-	per gross	1	0
Alum	-	-	-	-	-	per cwt.	0	1¾
Anchors	-	-	-	-	-	per ton	5	0
Ashes	-	-	-	-	-	per ton	2	0
Asphalte and bitumen	-	-	-	-	-	per ton	1	3
Aerated waters (all kinds)	-	-	-	-	-	per ton	1	8
Bacon or hams	-	-	-	-	-	per ton	3	4
Barilla	-	-	-	-	-	per ton	3	0
Bark oak	-	-	-	-	-	per ton	2	6
Barley and other groats	-	-	-	-	-	per ton	2	0
Barrels (empty herring)	-	-	-	-	-	each	0	1
Baskets under 12 inches in diameter	-	-	-	-	-	per dozen	0	6
„ above „ „ „	-	-	-	-	-	per dozen	1	0
Basket rods	-	-	-	-	-	per cwt.	0	2
Beef or pork (fresh or salt)	-	-	-	-	-	per ton	3	6
Beer (black or spruce)	-	-	-	-	-	per 3 gallons	0	2
Billiard tables	-	-	-	-	-	per cwt.	0	2
Biscuits	-	-	-	-	-	per ton	3	0
Blacking	-	-	-	-	-	per cwt.	0	6
Bleaching salts	-	-	-	-	-	per cwt.	0	2¼
Blubber	-	-	-	-	-	per 252 gallons	3	0
Bones (crushed or uncrushed)	-	-	-	-	-	per ton	1	6
Books and stationery	-	-	-	-	-	per cwt.	0	4
Bottles	-	-	-	-	-	per gross	0	4
„ (broken)	-	-	-	-	-	per ton	0	6
Boxwood	-	-	-	-	-	per cwt.	0	1¾
Bran	-	-	-	-	-	per ton	1	0
Brass	-	-	-	-	-	per ton	2	0
Bricks	-	-	-	-	-	per 1000	0	10
Brimstone	-	-	-	-	-	per ton	2	0
Bristles	-	-	-	-	-	per cwt.	0	9
Brooms (common)	-	-	-	-	-	per dozen	0	2
Bulrushes	-	-	-	-	-	per cwt.	0	2
Butter	-	-	-	-	-	per cwt.	0	3
Boxes (empty)	-	-	-	-	-	each	0	1
Candles	-	-	-	-	-	per ton	3	6
Canvas	-	-	-	-	-	per cwt.	0	2
Carpets rugs and upholstery articles	-	-	-	-	-	per ton	2	6
Cane reeds	-	-	-	-	-	per cwt.	0	2

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						s.	d.	A.D. 1914.
Carboys (empty) -	-	-	-	-	each	0	1	—
Carriages with springs under 5 cwt.	-	-	-	-	each	3	0	
„ 5 cwt. and under 7½ cwt.	-	-	-	-	each	5	6	
„ 7½ cwt. and under 10 cwt.	-	-	-	-	each	7	6	
„ 10 cwt. and above	-	-	-	-	each	10	0	
Carrots -	-	-	-	-	per ton	1	0	
Casks boxes sacks and kits (empty) except returned empties as provided for in the notes to this schedule	-	-	-	-	each	0	1	
Cattle:—								
Bulls cows and oxen	-	-	-	-	each	0	6	
Calves	-	-	-	-	each	0	1	
Horses	-	-	-	-	each	1	0	
Ponies under 12 hands	-	-	-	-	each	0	6	
Asses or mules	-	-	-	-	each	1	0	
Pigs -	-	-	-	-	each	0	3	
Sheep and lambs	-	-	-	-	each	0	1	
Small cattle and ponies from Orkney and Shetland	-	-	-	-	each	0	8	
Cement -	-	-	-	-	per ton	1	6	
Chalk -	-	-	-	-	per ton	1	6	
Cheese -	-	-	-	-	per ton	2	6	
Chimney pots	-	-	-	-	each	0	1	
Chocolate -	-	-	-	-	per cwt.	0	3	
Cider -	-	-	-	-	per 3 gallons	0	0½	
Cinders and charcoal	-	-	-	-	per ton	0	9	
Clay (china or stone)	-	-	-	-	per ton	1	0	
„ pipes	-	-	-	-	per ton	1	0	
Clocks -	-	-	-	-	each	1	0	
Clothing haberdashery silk mercery &c. not otherwise enumerated	-	-	-	-	per ton	3	0	
Coals -	-	-	-	-	per ton	0	4	
Cocoa -	-	-	-	-	per cwt.	0	3	
Cocoa nuts	-	-	-	-	per 100	0	4	
Coffee -	-	-	-	-	per cwt.	0	3	
Coke -	-	-	-	-	per ton	0	10	
Confections of all kinds	-	-	-	-	per cwt.	0	2	
Copper -	-	-	-	-	per ton	3	0	
„ (old)	-	-	-	-	per ton	2	0	
„ ore	-	-	-	-	per ton	0	1	
Copperas -	-	-	-	-	per cwt.	0	1¾	
Colours -	-	-	-	-	per cwt.	0	1¾	
Cordage -	-	-	-	-	per ton	2	6	
„ (old) not in use	-	-	-	-	per ton	1	0	
Cork wood and corks	-	-	-	-	per ton	3	4	

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A.D. 1914. Corn and meal viz. :—

							s.	d.
Barley and bigg	-	-	-	-	-	per ton	1	4
Bere and meal	-	-	-	-	-	per ton	1	6
Beans	-	-	-	-	-	per ton	1	4
Indian corn	-	-	-	-	-	per ton	1	4
„ meal	-	-	-	-	-	per ton	1	6
Malt	-	-	-	-	-	per ton	2	8
Oats	-	-	-	-	-	per ton	1	4
Oatmeal	-	-	-	-	-	per ton	1	6
Peas	-	-	-	-	-	per ton	1	6
Rye	-	-	-	-	-	per ton	1	4
Wheat	-	-	-	-	-	per ton	1	6
Cotton wool &c.	-	-	-	-	-	per ton	5	0
Crystal	-	-	-	-	-	per ton	5	0
Cutch	-	-	-	-	-	per ton	3	4
Dogs	-	-	-	-	-	each	0	6
Drugs	-	-	-	-	-	per cwt.	0	4
Dung	-	-	-	-	-	per ton	0	4
Earthenware	-	-	-	-	-	per ton	2	6
Eggs	-	-	-	-	-	per cwt.	0	3
Emery and emery stones	-	-	-	-	-	per cwt.	0	3
Feathers	-	-	-	-	-	per ton	10	0
Felt	-	-	-	-	-	per ton	2	6
Fish dried	-	-	-	-	-	per cwt.	0	2
Fish pickled or salted	-	-	-	-	-	per cwt.	0	2
Fish fresh haddock cod ling and fish not enumerated	-	-	-	-	-	per cwt.	0	2
Fish large fresh cod ling and skate	-	-	-	-	-	per 20	0	3
Fish offal	-	-	-	-	-	per ton	0	4
Flax	-	-	-	-	-	per cwt.	0	2
Flour	-	-	-	-	-	per ton	2	8
Flower roots	-	-	-	-	-	per cwt.	0	2
Flint stones	-	-	-	-	-	per ton	0	6
Fruit viz. :—								
Apples pears and berries	-	-	-	-	-	per cwt.	0	3
Plums cherries and grapes	-	-	-	-	-	per cwt.	0	4
Melons	-	-	-	-	-	per cwt.	0	2
Peaches	-	-	-	-	-	per 100	0	2
All not enumerated	-	-	-	-	-	per 10l. value	0	10
Furniture (household)	-	-	-	-	-	per 10l. value	1	0
Furriers' waste	-	-	-	-	-	per ton	0	4
Game	-	-	-	-	-	per head	0	0½
Ginger	-	-	-	-	-	per cwt.	0	3
„ preserved	-	-	-	-	-	per cwt.	0	6
Glass of all descriptions	-	-	-	-	-	per cwt.	0	2

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							s.	d.	A.D. 1914.
Glue	-	-	-	-	-	per cwt.	0	4	—
Grates stoves &c.	-	-	-	-	-	per ton	3	6	
Gravel	-	-	-	-	-	per ton	0	6	
Grease	-	-	-	-	-	per ton	2	6	
Groceries all kinds not enumerated	-	-	-	-	-	per cwt.	0	3	
Gunpowder	-	-	-	-	-	per cwt.	0	3	
Guano	-	-	-	-	-	per ton	1	6	
Hair all kinds baken	-	-	-	-	-	per cwt.	0	4½	
„ „ plasterers'	-	-	-	-	-	per ton	2	0	
Hardware	-	-	-	-	-	per cwt.	0	2	
Hats	-	-	-	-	-	per dozen	0	6	
Hay	-	-	-	-	-	per ton	1	6	
Hemp	-	-	-	-	-	per ton	3	6	
Herrings fresh imported or exported	-	-	-	-	-	per 37½ gallons	0	3	
„ cured imported or exported	-	-	-	-	-	per 26⅔ gallons	0	2	
Hides raw	-	-	-	-	-	per cwt.	0	2	
Honey	-	-	-	-	-	per cwt.	0	3	
Hoops of wood	-	-	-	-	-	per 1000	0	10	
Hops	-	-	-	-	-	per cwt.	0	6	
Horns slugs and tips	-	-	-	-	-	per 1000	1	8	
Husbandry implements	-	-	-	-	-	per ton	1	4	
Iron viz. :—									
Bar plate bolt and rod	-	-	-	-	-	per ton	2	0	
Forged made work and hoops	-	-	-	-	-	per ton	3	4	
Old	-	-	-	-	-	per ton	1	3	
Old and broken goods	-	-	-	-	-	per ton	0	6	
Cast-iron goods	-	-	-	-	-	per ton	2	6	
Wire	-	-	-	-	-	per cwt.	0	2	
Pig	-	-	-	-	-	per ton	1	0	
Kelp	-	-	-	-	-	per ton	1	0	
Kiln pavement	-	-	-	-	-	per 30 feet	0	4	
Lard	-	-	-	-	-	per ton	2	0	
Lead	-	-	-	-	-	per ton	2	0	
„ black	-	-	-	-	-	per ton	2	0	
„ ore	-	-	-	-	-	per ton	2	0	
„ red and white	-	-	-	-	-	per ton	2	0	
„ shot	-	-	-	-	-	per ton	3	0	
„ sugar of	-	-	-	-	-	per cwt.	0	2	
Leather tanned and dressed	-	-	-	-	-	per cwt.	0	3	
Lemons	-	-	-	-	-	per cwt.	0	4	
Lignum vitæ	-	-	-	-	-	per ton	3	0	
Lime	-	-	-	-	-	per ton	0	6	
Loam	-	-	-	-	-	per ton	0	4	

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A.D. 1914.

							s.	d.
Machinery	-	-	-	-	-	per ton	0	2
Manures manufactured and not otherwise enu- merated	-	-	-	-	-	per ton	1	6
Mats and basses	-	-	-	-	-	per dozen	0	1
Mill waste	-	-	-	-	-	per ton	2	0
Molasses	-	-	-	-	-	per ton	2	0
Mussels	-	-	-	-	-	per ton	0	6
Nuts all kinds (except cocoa)	-	-	-	-	-	per cwt.	0	3
Oakum	-	-	-	-	-	per ton	3	0
Ochre	-	-	-	-	-	per cwt.	0	1½
Oil of all kinds	-	-	-	-	-	per ton	3	4
Oilcake	-	-	-	-	-	per ton	2	0
Onions	-	-	-	-	-	per cwt.	0	3
Oranges	-	-	-	-	-	per cwt.	0	2
Oysters	-	-	-	-	-	per cwt.	0	3
Peats	-	-	-	-	-	per ton	0	3
Paper	-	-	-	-	-	per cwt.	0	2
Pewter	-	-	-	-	-	per ton	2	0
„ (old)	-	-	-	-	-	per ton	1	8
Pianofortes	-	-	-	-	-	per 10l. value	1	0
Pictures under two feet square	-	-	-	-	-	each	0	6
„ two feet and under four feet	-	-	-	-	-	each	1	0
„ four feet and upwards	-	-	-	-	-	each	2	0
Pigs' heads	-	-	-	-	-	per cwt.	0	0¾
Pipes drain under three inches in diameter	-	-	-	-	-	per 1000	0	6
„ above three inches in diameter	-	-	-	-	-	per 1000	0	9
„ collars three inches in diameter	-	-	-	-	-	per 1000	0	3
„ spigot and faucet clay glazed	-	-	-	-	-	per ton	1	0
(Drains tiles and mugs one-third less.)								
Pipes tobacco	-	-	-	-	-	per cwt.	0	4
Pitch	-	-	-	-	-	per cwt.	0	2
Plaster of Paris	-	-	-	-	-	per ton	2	8
Plants nursery and garden (all kinds)	-	-	-	-	-	per cwt.	0	4
Porter	-	-	-	-	-	per 3 gallons	0	0½
„ (bottled)	-	-	-	-	-	per gross	1	0
Potatoes	-	-	-	-	-	per ton	1	0
Poultry (all kinds)	-	-	-	-	-	each	0	0½
Provisions preserved (all kinds)	-	-	-	-	-	per cwt.	0	2
Pumice stone	-	-	-	-	-	per cwt.	0	3
Rags	-	-	-	-	-	per ton	2	0
Rice	-	-	-	-	-	per cwt.	0	2
Rosin	-	-	-	-	-	per ton	2	6

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						s.	d.	A.D. 1914.
Saddlery (all kinds)	-	-	-	-	per cwt.	0	3	—
Salt in bulk	-	-	-	-	per ton	0	9	
„ rock	-	-	-	-	per ton	0	9	
„ saltpetre and Glauber salt	-	-	-	-	per ton	3	4	
„ in barrel including dues of barrel	-	-	-	-	per ton	1	4	
Salmon	-	-	-	-	per cwt.	0	6	
Sand	-	-	-	-	per ton	0	6	
Seed viz:—								
Rape and flax	-	-	-	-	per cwt.	0	1	
Clover	-	-	-	-	per cwt.	0	3	
Rye grass	-	-	-	-	per ton	3	4	
Shoes of all kinds	-	-	-	-	per ton	3	0	
Sheep skins with wool	-	-	-	-	per cwt.	0	3	
„ pelts	-	-	-	-	per cwt.	0	2	
Slates large	-	-	-	-	per 1000	1	4	
„ sizeable	-	-	-	-	per 1000	0	10	
„ small	-	-	-	-	per 1000	0	6	
Snuff	-	-	-	-	per cwt.	0	6	
Soap	-	-	-	-	per ton	2	0	
Soda	-	-	-	-	per ton	1	6	
Spades or shovels	-	-	-	-	per doz.	0	1	
Spirits of all kinds	-	-	-	-	per gallon	0	0 $\frac{1}{4}$	
Starch	-	-	-	-	per cwt.	0	3	
Steel	-	-	-	-	per ton	3	0	
Straw	-	-	-	-	per ton	1	0	
Stones viz:—								
Freestone building	-	-	-	-	per ton	0	5	
Polished granite	-	-	-	-	per ton	2	6	
Causeway granite	-	-	-	-	per ton	0	3	
Kerb pavement and building	-	-	-	-	per ton	0	5	
Rubble and chips	-	-	-	-	per ton	0	2	
Rigging stones	-	-	-	-	per 100 running feet	1	6	
Flagstones	-	-	-	-	per ton	0	9	
Gravestones	-	-	-	-	each	3	0	
Marble	-	-	-	-	per ton	3	0	
Scythe stones	-	-	-	-	per cwt.	0	2	
Grindstones	-	-	-	-	each	0	4	
Millstones	-	-	-	-	each	0	6	
All other descriptions except flint	-	-	-	-	per ton	1	0	
Stucco	-	-	-	-	per ton	1	8	
Sugar (all kinds)	-	-	-	-	per ton	1	8	
Stoneware (all kinds)	-	-	-	-	per cwt.	0	2	
Tallow	-	-	-	-	per ton	2	0	
Tanners' waste	-	-	-	-	per ton	1	0	

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A.D. 1914.

						s.	d.
Tar (coal)	-	-	-	-	- per 39 gallons	0	1
„ (Archangel)	-	-	-	-	per 26½ gallons	0	2
Tea	-	-	-	-	per cwt.	0	6
Tiles roofing	-	-	-	-	per 1000	1	0
Tin of all kinds	-	-	-	-	per ton	2	0
Tin plates	-	-	-	-	per ton	2	0
Tobacco in leaf	-	-	-	-	per cwt.	0	2¼
„ manufactured	-	-	-	-	per 100 lbs.	0	4½
„ stalks	-	-	-	-	per cwt.	0	3
Tongues smoked	-	-	-	-	per dozen	0	1½
„ pickled	-	-	-	-	per cwt.	0	4
Toys	-	-	-	-	per cwt.	0	3
Treenails	-	-	-	-	per 1000	1	6
Turnery	-	-	-	-	per 10% value	0	10
Turnips	-	-	-	-	per ton	0	6
Twine	-	-	-	-	per cwt.	0	3
Tow (all kinds)	-	-	-	-	per ton	1	6
Vases or sculptured marble	-	-	-	-	per cwt.	0	3
Vinegar	-	-	-	-	per 3 gallons	0	0½
Vitriol	-	-	-	-	per gallon	0	0½
Varnish	-	-	-	-	per cwt.	0	2
Veneers (all kinds)	-	-	-	-	per cwt.	0	4
Vegetables	-	-	-	-	per ton	0	6
Whalebone or whalefins	-	-	-	-	per ton	3	4
Wheels coach carriage or cart	-	-	-	-	per pair	0	9
Whitening	-	-	-	-	per ton	0	10
Willow reeds	-	-	-	-	per cwt.	0	2
Wine	-	-	-	-	per gallon	0	0¼
„ bottled	-	-	-	-	per gross	1	0
Wood viz.:—							
„ Herring barrel billets	-	-	-	-	per ton	1	0
„ „ staves	-	-	-	-	per 1000 superficial feet	1	4
„ All other kinds not enumerated	-	-	-	-	per 1% value	0	4
Wool	-	-	-	-	per ton	3	4
Yarn viz.:—							
„ Lint and cotton	-	-	-	-	per ton	4	6
„ Hemp	-	-	-	-	per ton	3	6
„ Worsted	-	-	-	-	per ton	4	6
Zinc	-	-	-	-	per ton	2	0
All goods or articles not enumerated in the foregoing schedule							
	-	-	-	-	per cwt.	0	2
All empty boxes barrels sacks and packages returned to the original shipper within three months from the date of import are exempt from rates.							

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VI.—RATE FOR SUPPLYING WATER.

A.D. 1914.

s. d.

For every 25 gallons or part of 25 gallons of pure and whole-
some drinking water supplied to any vessel or boat - - 0 1½

THIRD SCHEDULE.

Purpose.	Amount sanctioned.	Amount borrowed.	Rate per cent.	Period authorised for repayment.	Balance outstanding on 31st March 1914.
	£	£			£ s. d.
Waterworks -	8,550	8,550	3¾	30 years	6,555 0 0
„ -	2,500	2,945	3½	30 years	2,588 0 0
„ -	529			30 years	
„ -	4,675	6,271	3½	30 years	5,917 11 0
„ -	1,596			20 years	
„ -	1,400	1,400	3½	30 years	1,376 13 4
					£16,437 4 4

FOURTH SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Porthcawl Urban District Council Act 1914 and of other their powers in that behalf them enabling the urban district council of Porthcawl (herein-after called “the Council”) in consideration of the sum of _____ pounds paid to the treasurer of the Council by _____ (herein-after called “the mortgagee”) do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of _____ pounds shall be fully paid and satisfied with interest for the same (subject as herein-after provided) at the rate of _____ per centum per annum from the _____ day of _____ one thousand nine hundred and _____ until _____

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A.D. 1914. payment of the said principal sum such interest to be paid half-yearly [on the day of and the day of in each year] And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the Council in the said district [(subject as herein-after provided) on the day of one thousand nine hundred and] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed between the Council and the mortgagee and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal
to be hereunto affixed this day of one
thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named
consenting the within-mentioned time for repayment of the within-
mentioned principal sum of
is hereby extended to the
day of one thousand nine hundred and
[and the interest to be paid thereon on and from the
day of one thousand
nine hundred and is hereby declared to be
at the rate of per centum per annum.]

Dated this day of
one thousand nine hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]
[of
in consideration of the sum of
pounds paid to me by
of
(herein-after called "the transferee") do hereby transfer to the transferee

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his executors administrators and assigns [the within written security] A.D. 1914.
[the mortgage number of the revenues of the urban district
council of Porthcawl bearing date the day of]
and all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors administrators and
assigns do hereby agree to take the said mortgage security subject to
the same conditions.

Dated this day of one thousand nine hundred
and

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